

6. 25CV04208 Curtis-Brown, Stephanie v. Marple, Larry et al

EVENT: Plaintiff's Motion for Deemed Admissions and Request for Sanctions

Plaintiff's Motion for Deemed Admissions is moot in light of the responses provided while this motion was pending. The Court finds the responses were untimely and as a result all objections are waived.

As to sanctions, contrary to Defendant's position, the failure to timely respond can, under certain circumstances, warrant sanctions in and of itself. The critical consideration is whether or not it was reasonable for Plaintiff to file the motion at the time the motion was filed. Considering these requests were initially served in December 2025 and that a generous extension from 3/6 – 4/5 was provided, it was reasonable to file a motion two days after that extension had expired. The fact responses were not provided for roughly another 3 weeks after the motion was filed demonstrates the motion was appropriate at the time it was filed.

Defendant (not defense counsel) is sanctioned in the amount of \$2,160.00. Sanctions are payable within 20 days. Plaintiff shall prepare the form of order within two weeks.

7-8. 25CV04386 Wells Fargo Bank, N A v. Yang, Lang

EVENT:

- (1) *Plaintiff's Motion for Order Deeming the Truth of the Matters Specified in Plaintiff's Request for Admissions as Admitted*
- (2) *Case Management Conference*

Plaintiff's Motion for Order Deeming the Truth of the Matters Specified in Plaintiff's Request for Admissions as Admitted is GRANTED. The Court will sign the proposed order.